

JING, **without leave to amend**. Defendants demur generally and on the ground of uncertainty. (Code Civ. Proc., § 430.10(e), (f).)

This court previously sustained Defendants' general demurrer to the Second Amended Complaint ("SAC") on the basis that the SAC failed to allege facts showing wrongdoing by either Mourer or Powerstone. (ROA 369, p. 4.)

The court finds that the TAC also fails to allege facts showing wrongdoing by either Mourer or Powerstone. The TAC merely adds the following allegations: On 10/17/22, Makhail circulated an email to Mourer, and Mourer told Plaintiffs that since Makhail hired Mourer, Mourer would do what Makhail wanted him to do. (TAC, ¶ 29.)

The TAC's allegations against Mourer and Powerstone remain deficient. For example, nowhere in the TAC do Plaintiffs allege that either Powerstone or Mourer wrongfully published private information about either plaintiff. Nor does the TAC allege facts showing that either Powerstone or Mourer made the decision to hang the Jing Poster in the guardhouse. Rather, the TAC alleges that Mourer was an employee of Powerstone and that Powerstone was a property management company for the Pacific Ridge Homeowners Association. (TAC, ¶¶ 5-7, 21.)

As Plaintiffs have now had numerous opportunities to amend, the court **SUSTAINS without leave to amend**.

Moving Defendants to give notice.

Motions to Be Relieved as Counsel

The motions are **DENIED as MOOT**. On 4/20/26, attorney JAMES W. DENISON filed motions to be relieved as counsel for Plaintiffs (1) DOUGLAS WONG and (2) JENNIER JING. (ROA 407.) Shortly thereafter, Substitutions of Counsel forms (MC-050) were filed on 4/23/26, whereby attorney Denison was substituted out as Plaintiffs' counsel. (ROA 417, 418.)

		Case Management Conference remains set for 8/3/26.